

FHS Theory of Politics: Liberty

Reading List:

Reading:

Philip Pettit, *Republicanism*, chapters 1, 2 and 6.

David Miller, ed., *Liberty*, essays by Isaiah Berlin, Hannah Arendt, Charles Taylor, Gerald McCallum.

Dorothea Gädeke, 'From Neo-Republicanism to Critical Republicanism', in Bruno Leipold, Karma Nabulsi and Stuart White, eds., *Radical Republicanism*.

Christopher J. Lebron, *The Making of Black Lives Matter*, especially chapters 1, 2, 5.

Further reading:

Frederick Douglass, *Narrative of the Life of Frederick Douglass*.

Nikolas Kirby, 'Revising Republican Liberty', *Res Publica*, 2015.

David Miller, ed., *Liberty*, essay by Hillel Steiner.

Quentin Skinner, *Liberty before Liberalism*.

Jeremy Waldron, 'Homelessness and the Issue of Freedom', in Jeremy Waldron, *Liberal Rights*.

Past Essay Questions:

'Non-interference is necessary but not sufficient for liberty.' Discuss. [2024]

'I am free to the extent that I do not depend on another's will.' Do you agree? [2023]

'Individuals will always be vulnerable to arbitrary interference, and so freedom as non-domination is an unattainable ideal.' Discuss [2022]

In what sense, if at all, does freedom require meaningful self-governance? [2021]

NA [2020]

Actual Notes

Freedom Generally

MacCallum's triadic account of freedom

- Talks about the (structure) Concept of Freedom: positive and negative theories of freedom seem to be about (substantive) conceptions of freedom
 - Nature of freedom itself, about the relationships holding between the attainment of freedom and the attainment of other possible social benefits, about the ranking of freedom among such benefits, and about the consequences of this or that policy with respect to realising or attaining freedom
- The functional form of freedom: what freedom is

- Triadic relation: Such freedom is thus always “of something (an agent or agents), from something, to do, not do, become, or not become something”
- The different conceptions of freedom differ over the range of variables they take
 - Positive freedom: “The rational self is free from internal and external obstacles to do what he would rationally want to do”
 - Negative freedom: “The empirical self is free from human interference to do what he wants to do”
- MacCallum recognises that the agent in question about who is truly free would differ → but he posits that the distinction between positive and negative freedom prevents us from seeing this
 - Writers adhering to the concept of ‘negative’ freedom hold that only the presence of something can render a person unfree; writers adhering to the concept of ‘positive’ freedom hold that the absence of something may also render a person unfree
 - The former hold that a person is free to do x just in case nothing due to arrangements made by other persons stops him from doing x; the latter adopt no such restriction
 - The former hold that the agents whose freedom is in question are identifiable as natural persons; the latter sometimes hold quite different views as to how these agents are to be identified
- MacCallum argues that the triadic relation is incisive in that it allows us to see that **no one can be free simpliciter**
 - Inescapability of some restraints: No freedom simpliciter because “Freedom is always and necessarily from restraint; thus insofar as the adherents of positive freedom speak of persons being made free by means of restraint, they cannot be talking about freedom”
 - Restraining Smith by means a from doing b produces a situation in which he is now able to do c because restraint d is lifted → one is free due to restraint a, made free from d to do c although he can no longer do b
 - Traffic lights make me less free to cross whenever I want, but makes me free from accidents
 - However, the positive notion could hold that men can be free simpliciter even in society because certain things, which ordinarily are counted as interferences or barriers are not actually so, or **because certain kinds of behaviour ordinarily thought to be either free or unfree do not, for some reason, ‘count’**
 - The burden of the argument is to show that “Everything from which a person in that society might ordinarily be considered unfree must be shown not actually an interference or barrier (or not a relevant one),

and everything which a person in that society might ordinarily be considered not free to do or become must be shown irrelevant to the issue of freedom” Part of the argument may be regarding the identity of that person who is free

- One may uncover that such arguments have tendencies to telescope questions concerning the legitimacy of interference into questions concerning genuineness as interference
- Perhaps the claim that certain men are free simpliciter is merely elliptical for the claim that they are free in every important respect, or in most important respects, or ‘on the whole’
 - Nevertheless, in talking about freedom, we are often asking “what are they free from” and “what are they free to do or become” → only then will we be in a position to judge the value or importance of the freedom(s) in question
 - We can’t simply ask “Is the man free?” → we must first determine what freedoms are important, and then move to calculate the value for human happiness and fulfilment of being free from that, to do the other thing → only with such specification can we make rational evaluations of the relative merits of societies with regard to freedom
- Arguments concerning the true identity of the person in question and what can restrict such a person’s freedom are important
 - But regardless, there is clearly something he is prima facie not free to do → otherwise meaningless to say that he was being made free by means of restraint
 - On this, we can ask 4 questions: (a) What is to count as an interference with the freedom of persons? (b) What is to count as an action that persons might reasonably be said to be either free or not free to perform? (c) What is to count as a legitimate interference with the freedom of persons? (d) What actions are persons best left free to do

Negative Freedom

Berlin’s argument for negative freedom and against positive freedom

Negative Liberty:

- “What is the area within which the subject — a person or a group of persons — is or should be left to do or be what he is able to do or be, without interference by other persons”
 - Distinct from positive sense: “What, or who, is the source of control or interference that can determine someone to do, or be, this rather than that?”

- Intuitive and simple: “If I am prevented by others from doing what I could otherwise do, I am to that degree unfree; and if this area is contracted by other men beyond a certain minimum, I can be described as being coerced, or, it may be, enslaved”
 - But coercion does not extend to natural limitations (I cannot fly) → it is instantiated by a person: “Coercion implies the deliberate interference of other human beings within the area in which I could otherwise act”
 - How important is deliberate interference? What about a socioeconomic arrangement that severely disadvantages me, but that was not specifically targeted at me?
 - The **mere incapacity to attain a goal is not lack of political freedom** → “if a man is too poor to afford something on which there is no legal ban — a loaf of bread, a journey round the world, recourse to the law courts — he is as little free to have it as he would be if it were forbidden him by law”
 - Coercion and lack of freedom is only because “I believe that my inability to get a given thing is **due to the fact that other human beings have made arrangements where by I am, whereas others are not, prevented from having enough money with which to pay for it, that I think myself a victim of coercion or slavery**”
 - So it is the unequal advantages resulting from a man-made arrangement that is sufficient for coercion
- But how wide should the area of non-interference be? If it were unlimited, then “it would entail a state in which all men could boundlessly interfere with all other men; and this kind of ‘natural’ freedom would lead to social chaos in which men’s minimum needs would not be satisfied”
 - Interdependence would lead to conflict → Hobbes and Rousseau
 - But many like Mill thought that there ought to exist “a certain minimum area of personal freedom which must on no account be violated; for if it is overstepped, the individual will find himself in an area too narrow for even that minimum development of his natural faculties which alone makes it possible to pursue, and even to conceive, the various ends which men hold good or right or sacred.”
- Consider the objection that freedom is not primary → it must precede basic needs being fulfilled
 - What is freedom to those who cannot make use of it? → you need food and medicine before personal liberty
 - But Berlin thinks that freedom may not be everyone’s primary need and that is ok → what grounds freedom is its universalistic nature
 - “The Egyptian peasant needs clothes or medicine before, and more than, personal liberty, but the minimum freedom that he needs today, and the greater degree of freedom that he may need tomorrow, is not

some species of freedom peculiar to him, but identical with that of professors, artists, and millionaires

- For Berlin, there are **a plurality of goals which man wants to pursue**; freedom is just part of that goal and it need not be of supreme value
 - “But liberty is also not the only goal of men” → economic prosperity among other things
 - Even if I sacrifice my freedom to share the misery of comrades, it is “freedom that I am giving up for the sake of justice or equality or the love of my fellow men”
 - **This sacrifice is not an increase in what is being sacrificed** (i.e. freedom) however great the moral need or compensation for it
 - Concepts and the goals of society are disjoint and distinct. “Everything is what it is: liberty is liberty, not equality or fairness or justice or culture, or human happiness...”
 - So if liberty of myself or my class or nation depends on the misery of others, the system is unjust → but the sacrifice of my liberty for the sake of alleviating inequality does not, on the account of negative liberty, increase overall liberty, but merely results in an “absolute loss in liberty”
 - This is despite the gains in justice or liberty
 - So, Berlin rejects outright the claim by positive theorists that policies to improve equality actually improve freedom → there is an unreasonable and erroneous reduction of all goals into that of achieving freedom
- Berlin recognises that in securing freedom for some we curtail the freedom of others; he then argues that freedom is not about being completely free or free simpliciter, but in **securing a minimum sphere of freedom from social control**
 - What is this minimum? “That which a man cannot give up without offending against the essence of his human nature” → what is this essence?
 - “Liberty in this sense means liberty from; absence of interference beyond the shifting, but always recognisable, frontier” → **“The only freedom which deserves the name, is that of pursuing our own good in our own way”** → Mill and his harm principle for otherwise, “Society will be crushed by the weight of collective mediocrity” and society will be unable to advance
 - “All errors which [a man] is likely to commit against advice and warning, are far outweighed by the evil of allowing others to constrain him to what they deem his good” → this conception “springs from this individualistic, and much disputed, conception of man” → that one knows his own goals and those goals are subjectively and thus infallibly worth pursuing
- Berlin’s 3 points on Mill’s doctrine
 - Mill confuses two distinct notions: (1) coercion is, insofar as it frustrates human desires, bad as such, although it may have to be applied to prevent

other, greater evils; while non-interference, which is the opposite of coercion, is good as such, although it is not the only good. This is the negative conception of liberty in its classical form. (2) The other is that men should seek to discover the truth, or to develop a certain type of character of which Mill approved...and that truth can be found, and such character can be bred, only in conditions of freedom

- But these views are not identical → only an empirical connection between them
- Doctrine is comparatively modern: scarcely any discussion of individual liberty as a conscious political ideal (as opposed to its actual existence) in the ancient world
- Liberty in this sense is not uniquely grounded in self-governance → compatible with some kind of autocracy and the absence of self-governance
 - Liberty in this sense is principally concerned with the area of control, not with its source
 - Liberal-minded despot would allow his subjects a large measure of personal freedom → the free slave
 - Freedom in this sense is not logically connected with democracy or self government
- “Who governs me?” is logically distinct from the question “How far does the government interfere with me?”
 - The desire to be governed by myself, or at any rate to participate in the process by which my life is to be controlled, may be as deep as wish as that for a free area for action, and perhaps historically older. But it is not a desire for the same thing
 - Mill’s doctrine (and that of negative liberty) is consistent with being under the rule of a “liberal minded despot”

Positive Liberty

- “What, or who, is the source of control or interference that can determine someone to do, or be, this rather than that?”
 - Not freedom from, but freedom to — to lead one prescribed form of life — which the adherents of the ‘negative’ notion represent as being, at times, not better than a specious disguise for brutal tyranny
- “positive” sense of the world derives from the wish on the part of the individual to be his own master
 - “I wish to be a subject, not an object; to be moved by reasons, by conscious purposes, which are my own, not by causes which affect me, as it were, from outside” → “an instrument of my own, not of other men’s act of will”

- Self-directed and not acted upon by external nature or by other men → I am capable of “conceiving goals and policies of my own and realising them” → “what I mean when I say that I am rational”
 - What matters is the background decisions for the choices I make → is my will manipulated? → need not be a single, “rational” will that I am committed to → so the despotic notion is a caricature as Taylor suggests
- Why is this different? Berlin notes that it is not obvious why they are at great logical distance but they developed in divergent directions until they are in direct conflict with each other
 - We can be slaves to “nature” beyond just being a slave to “man” → we can be slaves to our own “unbridled passions” (though should we count this? Fundamentally not obvious)
 - The dominant self is then “identified with reason, with my ‘higher nature’, with the self which calculates and aims at what will satisfy it in the long run, with my ‘real’ or ‘ideal’, or ‘autonomous’ self, or with myself ‘at its best’” → contrasted with my empirical self “swept by every gust of desire and passion”
- The plausibility lies in the fact that “we recognise that it is possible, and at times justifiable, to coerce men in the name of some goal which they would, if they were more enlightened, themselves pursue, but do not, because they are blind or ignorant or corrupt”
 - But can lead to totalitarianism → “I am in a position to ignore the actual wishes of men or societies, to bully, oppress, torture them in the name, and on behalf, of their ‘real’ selves, in the secure knowledge that whatever is the true goal of man must be identical with his freedom — the free choice of his ‘true’, albeit often submerged and inarticulate, self.”
 - “consists in equating what X would choose if he were something he is not, or at least not yet, with what X actually seeks and chooses, is at the heart of all political theories of self-realisation”
 - Is this true? surely it just consists in eliminating the preconditions for the will not originating from oneself? Education etc → we do not need to dictate a specific will, just how it comes about → weak form of rational desire
- “Positive conception of freedom as self-mastery, with its suggestion of a man divided against himself” → conceptions of freedom directly derive from views of what constitutes a self, a person, a man

Stoic idea that freedom consists in eliminating desires that cannot be satisfied

- The retreat to the Inner Citadel (reveals problems of manipulable/adaptive desires)
- “I am the possessor of reason and will; I conceive of ends and I desire to pursue them; but if I am prevented from attaining them I no longer feel master of the

situation. I may be prevented by the laws of nature, or by accidents, or the activities of men...effects...often undesigned, of human institutions”

- “What am I to do to avoid being crushed by them? I must liberate myself from desires that I know I cannot realise”
- Stoic idea: If you have a wound in your leg, two methods of healing. “One is to heal the wound. But if the cure is too difficult or uncertain, there is another method. I can get rid of the wound by cutting off my leg. If I train myself to want nothing to which the possession of my leg is indispensable, I shall not feel the lack of it”
 - Traditional self-emancipation → reveals the vulnerabilities of positive liberty, for one can be free by emancipating one from his desires while being controlled by the same forces
 - Is this too radical a view?
- Search for personal freedom
 - Kant, conversely, identified freedom not with the elimination
 - But this personal freedom seems to suggest homogeneity → “heteronomy is dependence on outside factors, liability to be a plaything of the external world that I cannot myself fully control”
 - For if we are autonomous beings and “authors of values, of ends in themselves” then nothing is worse than to treat ourselves as “natural objects” vulnerable to exogenous causes
 - We cannot give up our ability to make choices → Kant ‘Paternalism is the greatest despotism imaginable”
- This notion of the free individual as a transcendent being, beyond the realm of natural causality, in its empirical form is at the heart of liberal individualism → the centrality is given to the rational life, conducted by an individual endowed by reason
 - “Autonomy, not heteronomy: to act and not to be acted upon. The notion of slavery to the passions is...more than a metaphor. To rid myself of fear, or love, or the desire to conform is to liberate myself from, the despotism of something which I cannot control”
- Berlin comments that this conception of the rational man who has retreated into the inner citadel seems to arise in the context of an extremely unjust world
 - The notion of negative liberty seems to far away an ideal and thus “will not do”
 - “If I find that I am able to do little or nothing of what I wish, I need only contract or extinguish my wishes, and I am made free:
 - The problem is that “If the tyrant manages to condition his subjects into losing their original wishes and embrace the form of life he has invented for them, he will, on this definition, have succeeded in liberating them” → the “very antithesis of political freedom”
- Such “ascetic self denial” while being a “source of integrity...spiritual strength” is not an “enlargement of liberty”

- But self-abnegation is not the only way to overcome obstacles, for removing these obstacles tend to be more freeing
- We can use this thought for the middle ground → for natural causes like gravity, we should not think ourselves as unfree that we cannot realise our desire to fly → but is this not a slippery slope

Freedom consists in rational self-direction (self-realisation: the only true method of attaining freedom is by the use of critical reason)

- Importance of reason
 - For example, suppose a schoolboy cannot understand how the vast theorems of mathematics follow from the axioms and instead the validity of these theorems are prescribed by some “external authority” vs when I understand the axioms and the “logic whereby the conclusions are obtained”, these mathematical truths no longer “obtrude themselves as external entities forced upon me” but something which “I now freely will in the course of the natural functioning of my own rational activity”
- “Passions, prejudices, fears...spring from ignorance...is a form of heteronomy, of being dominated by outside factors in a direction not necessarily willed by the agent”
 - Knowledge liberates by automatically eliminating irrational fears and desires
- Doctrine of liberation by reason
 - Marx maintained that the path of human beings are obstructed by the workings of their own social institutions (which they created but whose functioning they systematically came to misconceive)
 - “We are imprisoned by evil spirits which we have ourselves — albeit not consciously — created, and can exorcise them only by becoming conscious and acting appropriately: indeed, for Marx understanding is appropriate action. I am free if, and only if, I plan my life in accordance with my own will; plans entails rules; a rule does not oppress me or enslave me if I impose it on myself consciously, or accept it freely, having understood it, whether it was invented by me or by others, provided that it is rational, that is to say, conforms to the necessities of things” → such as my fundamental desires
 - “To want necessary laws to be other than they are is to be prey to an irrational desire — a desire that what must be X should also not be X”
 - The positive notion is not the negative notion where there is a field without obstacles but rather the notion of self-direction or self-control → I can do what I will with my own

Criticism of the self-rational view

- Berlin began his analysis from the assumption of the self-rational view: Thinkers thought that this problem of frontiers was not only soluble, but there existed a unique solution discoverable by any rational thinker

- On this assumption, the problem of political liberty was soluble by establishing a just order that would give to each man all the freedom to which a rational being was entitled
 - “My claim to unfettered freedom can at times not be reconciled with your equally unqualified claim; but the rational solution of one problem cannot collide with the equally true solution of another” → for two truths cannot logically be incompatible
 - Therefore, “a just order must in principle be discoverable — an order of which the rules make possible correct solutions to all possible problems that could arise in it”
- Freedom is self-mastery, the elimination of obstacles to my will, whatever these obstacles may be — the resistance of nature, of my ungoverned passions, of irrational institutions, of the opposing wills or behaviour of others
 - To remove human obstacles, I need to impose my will on them to → but this does not make them slaves, for if my plan is fully rational, it will allow for the full development of their ‘true’ natures, the realisation of their capacities for rational decisions, for ‘making the best of themselves’ as part of the realisation of my own true self → all true solutions to all genuine problems must be compatible
 - If the universe is governed by reason, then there will be no need for coercion; a correctly planned life for all will coincide with full freedom — the freedom of rational self-direction — for all
 - We can be coerced but we are not slaves, because they obey orders given in their own interests, and that the subject of a true commonwealth is no slave, because the common interest must include his own — Spinoza
 - Locke: where there is no law there is no freedom, because rational law is a direction to a man’s proper interests or general good
 - Kant: Liberty lies in the “power of doing what we ought to will” → we can be restrained in our own interests, because the ‘presumed consent of every rational creature is in unison with the predisposed order of things’ → Burke
- Berlin’s criticism
 - Common assumption: is that **“the rational ends of our true natures must coincide...however violently our poor ignorant...passionate, empirical selves may cry out against this process”**
 - Berlin is acutely aware of human pluralism → we have some common ends such as security but we lack universal ends
 - The fatal flaw in Rousseau’s “In giving myself to all, I give myself to none” → his proposal is essentially in identifying freedom and liberation with just authority

- In Rousseau's ideal society, composed of wholly responsible beings, rules, because I should scarcely be conscious of them, would gradually wither away
- But the proponents of this view press harder by thinking of how empirical men can be transformed into rational beings → Rousseau's notion of denaturing
 - Came to the conclusion of education → "Children cannot be expected to understand why they are compelled to go to school" → Even Mill is prepared to say that "I may forcibly prevent a man from crossing a bridge if there is not time to warn him that it is about to collapse, for I know...that he can not wish to fall into the water"
- Berlin rejects such democratic optimism
- My plan may not be able to be realised unless I act against my fellow citizens → Gray says that our permanent interests are security and autonomy (so does Rousseau) → but autonomy is realised in exercising in distinct plans originating from ourselves, so heteronomy is necessary
 - So these thinkers may be right in thinking of there being core permanent interests but are wrong in how they think that these interests manifest themselves
- This argument is used by every dictator or bully who seeks some moral justification for his conduct → that **"I must do for men (or with them) what they cannot do for themselves, and I cannot ask their permission or consent, because they are in no condition to know what is best of them"**
 - But I am responsible for public welfare, I cannot wait until all men are wholly rational → positive liberty is at least practically unrealisable
- Summary of the basic assumptions of positive liberty
 - First, that all men have one true purpose, and one only, that of rational self-direction
 - Second, that the ends of all rational beings must of necessity fit into a single universal, harmonious pattern, which some men may be able to discern more clearly than others
 - Third, that all conflict, and consequently all tragedy, is due solely to the clash of reason with the irrational or the insufficiently rational — the immature and undeveloped elements in life, whether individual or communal — and that such clashes are, in principle, avoidable, and for wholly rational beings, impossible
 - Finally, that when all men have been made rational, they will obey the rational laws of their own natures, which are one and the same in them all, and so be at once wholly law abiding and wholly free
 - Berlin thinks that perhaps "not one of the basic assumptions of this famous view is demonstrable or perhaps even true"

Freedom and collective self-determination cannot be assimilated into one another

- Begins from analysing the relation between society and freedom
- “Insofar as I live in society, everything that I do inevitably affects, and is affected by, what others do”
 - Virtually all Mill’s critics have pointed out that everything that I do may have results which will harm other human beings
- Impossibility argument against retreating into the Citadel → we cannot coincide because we are inherently shaped by our society → we will trivially coincide in the sense that we all want food
 - **Our conception of the self is influenced by society:** For “I am not disembodied reason. Nor am I Robinson Crusoe, alone upon his island. It is not only that my material life depends upon interaction with other men, or that I am what I am as a result of social forces, but that some, perhaps all, of my ideas about myself; in particular my sense of my own moral and social identity, are intelligible only in terms of the social network in which I am an element” → inconsistency within Rousseau?
 - If there is some coinciding goal, it will manifest itself differently in each person because “What I may seek to avoid is simply...not being treated as an individual, having my uniqueness insufficiently recognised...purposes of my own”
- Berlin calls the positive theorist as “hankering after status and recognition” and recognition of human uniqueness: “This is the degradation that I am fighting against — not equality of legal rights, nor liberty to do so as I wish..., but for a condition in which I can feel that I am, because I am taken to be, a responsible agent, whose will is taken into consideration because I am entitled to it...”
 - What the positive liberty proponents want “is simply **recognition as an independent source of human activity, as an entity with a will of its own**, intending to act in accordance with it...and not to be ruled...with however light a hand, as being not quite fully human, and therefore not quite fully free” → far wider than a purely rationalist sense to Kant’s paternalism is the greatest despotism imaginable
 - It is despotic not because of its oppression, but because it is an insult to my conception of myself as a human being, determined to make my own life in accordance with my own purposes, and above all, entitled to be recognised as such by others
- The problem is that this desire for status and recognition cannot be easily identified with negative or positive liberty
 - “The essence of the notion of liberty, both in the ‘positive’ and the ‘negative’ senses, is the holding off of something or someone — of others who trespass on my field or assert their authority over me, or of obsessions, fears, neuroses, irrational forces — intruders and despots of one kind of another”

- “The desire for recognition is a desire for something different: for union, closer understanding, integration of interests, a life of common dependence and common sacrifice” → it is only the confusion of desire for liberty with this profound and universal craving for status and understanding, further confounded by being identified with the notion of social self-direction, where the self to be liberated is no longer the individual but the ‘social whole’, that makes it possible for men, while submitting to the authority...to claim that this in some sense liberates them”
 - But are we to call the struggle for higher status, the wish to escape from an inferior position a “struggle for liberty?” → seems to make this word useless and vague
- All liberties must contain a minimum level of negative liberty → but Mill wanted a maximum degree of non-interference compatible with the minimum demands of social life
- But unlikely since the bulk of humanity has been prepared to sacrifice this for other goals: security, status, prosperity, power, virtue, rewards in the next world; or justice, equality, fraternity, and many other values which appear wholly, or in part, incompatible with the attainment of the greatest degree of individual liberty, and certainly do not need it as a precondition for their own realisation → so conceptions of liberty are composite?

Democracy and freedom may be conflicting ideals

- Mill and the tyranny of the majority
- Democracies can suppress freedom → Mill and Tocqueville require that no power except rights can be absolute
- Difference between negative and positive: negative wants to curb authority as such, latter wants it placed in their own hands → not two different interpretations of a single concept, but two profoundly divergent and irreconcilable attitudes to the ends of life → both claims cannot be satisfied for each of them make absolute claims
 - Can exemplify this using Mill and Rousseau as contrasting examples of social arrangements

Berlin’s negative libertarian view that humans have fundamentally diverse goals that cannot be harmoniously realised together

- Many goals can conflict with one another: “that justice and generosity, public and private loyalties, the demands of genius and the claims of society, can conflict violently with each other” → not all goods are compatible
 - But some object to this by saying that “To admit that the fulfilment of some of our ideals may in principle make the fulfilment of others impossible is to say that the notion of total human fulfilment is a formal contradiction” → a priori true

- But Berlin rejects this: “But if we are not armed with an a priori guarantee of the proposition that a total harmony of true values is somewhere to be found — perhaps in some ideal realm the characteristics of which we can, in our finite state, not so much as conceive — we must fall back on the ordinary resources of empirical observation and ordinary human knowledge”
- Conclusion: “it is the notion of freedom in its ‘positive’ sense that is at the heart of the demands for national and social self-direction which animate the most powerful and morally just public movements of our time, and that not to recognise this is to misunderstand the most vital facts and ideas of our age. But equally, it seems to me that the belief that **some single formula can in principle be found whereby all the diverse ends of men can be harmoniously realised is demonstrably false**”
 - “If, as I believe, the ends of men are many, and not all of them are in principle compatible with each other, then the possibility of conflict — and of tragedy — can never wholly be eliminated from human life, either personal or social” → “the necessity of choosing between absolute claims is then an inescapable characteristic of the human condition. This gives its value to freedom...as an end in itself”
- This does not mean to say that liberty is the sole of the dominant criterion of social action → there are curbs to freedom → but this should not stem from a justification of some other freedom, but that we ought to pursue other goals such as prosperity etc in favour of freedom
 - “To protest against the laws governing censorship or personal morals as intolerable infringements of personal liberty presupposes a belief that the activities which such laws forbid are fundamental needs of men as men, in a good society”
 - “To defend such laws is to hold that these needs are not essential, or that they cannot be satisfied without sacrificing some other values which come higher — satisfy deeper needs — than individual freedom, determined by some standard that is not merely subjective; a standard for which some objective status — empirical or a priori — is claimed”

Arendt’s argument for negative freedom

- A natalist conception of freedom: an action is free not in choosing from a set of options but rather in doing the unexpected; to (freely) act means the ability to do the unanticipated, original and creative (after all, what is distinctively human is the ability to create)
 - “It is in the nature of beginning that something new is started which cannot be expected from whatever may have happened before. This character of startling unexpectedness is inherent in all beginnings ... The fact that man is capable of action means that the unexpected can be expected from him, that

he is able to perform what is infinitely improbable. And this again is possible only because each man is unique, so that with each birth something uniquely new comes into the world”

- Arendt’s view is fundamentally pluralist: the unexpected, heteronomous (Kantian influence) is constitutive of freedom; there is no singular rational path of action that is constitutive of freedom, which is what positive theorists argue for – Arendt argues for a theory that purports that human actions and desires are fundamentally diverse
- Freedom is necessarily embedded in the notion of a political community for freedom arises inherently from “intercourse with others” and not “intercourse with ourselves”
 - Importance of politics and freedom → The end of politics is to establish and keep in existence a space where freedom as virtuosity can appear; this is the realm where freedom is a worldly reality, tangible in words which can be heard, in deeds which can be seen
 - “Freedom is the end of politics only if it designates a realm which is public and therefore not merely distinguished from, but even opposed to, the private realm and its interest”
- Arendt argues that freedom is identical with acting and is not a prior evaluative status
 - “Men are free – as distinguished from their possessing the gift for freedom – as long as they act, neither before nor after; for to be free and to act are the same”
 - Because of this, freedom is not observable: we can never say that a man is free as a result of some outcome or social precondition
 - What we can see is merely the end product, or as per Arendt’s analogy, the “work of art” but what is constitutive of freedom is precisely the “free creative process” which creates the art
 - We cannot observe freedom from the result of action and so “The element of freedom remains unobservable”
- Arendt differs from Mill in extensionally equating liberty with the public/private sphere
 - For Mill, liberty is equivalent with expanding the private sphere and place of unimpeded action
 - For Arendt, **liberty is equivalent with the creation and protection of a public sphere, where the unexpected can break into reality**
- But in the defence of freedom as manifesting only in the public sphere, Arendt explicitly denies the Rousseauian notion of positive freedom
 - Arendt argues that “the identification of freedom with sovereignty perhaps the most pernicious and dangerous consequence of the philosophical equation of freedom and free will”

- Either realise that men can never be truly sovereign or that such sovereignty can only be purchased at the price of freedom of others
- “Where men wish to be sovereign, as individuals or as organised groups, they must submit to the oppression of the will, be this the individual will with which I force myself or the ‘general will’ of an organised group...If men wish to be free, it is precisely sovereignty they must renounce”
 - For Arendt, the ‘general will’ **denies the fundamentally diverse and pluralistic nature of man which is constitutive of freedom**
 - Freedom, according to Arendt, is about novel creation and beginnings, of unexpected action breaking into the sphere of reality; it follows that realising some homogeneous set of common actions cannot itself be freedom
- The goal of politics then, is to locate the answer to the extraordinarily difficult question of **preserving freedom of action under the conditions of non-sovereignty**
 - So it seems that although Arendt (background: she advocates for many fundamental political rights) differs from Mill in arguing that freedom needs to exist in tandem with the existence of the public sphere, she argues for the preservation of a legitimate political community through the legislation of rights in the public sphere
 - In other words, Arendt argues for the preservation of autonomy in the public sphere; **our political community ought to allow people to pursue their unanticipated rational life plans**
 - But Arendt justifies this via the assumption of the inherent value of freedom rather than some utilitarian justification

Steiner’s thesis for negative freedom

- Freedom is the personal possession of physical objects
 - ‘X is free to do A’ entails that none of the physical components of doing A is possessed by an agent other than X
 - ‘X is unfree to do A’ entails that at least one of the physical components of doing A is possessed by an agent other than X.

Positive Freedom

Taylor’s argument for Positive Freedom

Launches a collapse argument against Negative Liberty: that for us to make negative liberty even plausible requires us to discriminate at least against significant and trivial obstacles which it turn forces us to discriminate against the significance of our purposes

- Taylor notes that negative liberty invariably must discriminate between obstacles, and in turn, requires us to independently discriminate between our purposes.
 - Examining the quotation describing liberty as “freedom from interference by others to act as one wishes”, we note that the quotation has already moved

from identifying “external obstacles” with a smaller set of “interference by others”.

- It qualifies the objects which are to be considered as obstacles are those resulting from human arrangements. Intuitively, such discrimination is necessary since we value liberty because it allows us to do “what we really want” – this would entail wanting to cross the road safely rather than wanting to cross the road whenever I want – presumably, negative liberty would endorse the creation of traffic lights precisely because it identifies certain interests (such as safely crossing roads) as more important
- **This discrimination is informed by a “background understanding” of which goals are more important to me** – Taylor characterises this as examining our “desires about desires”, a rationalist understanding of our fundamental purposes (that we can be mistaken about).
 - So, to preserve the value of liberty, negative theorists have not only incorporated some mild form of discrimination but need to go further in adding rationality constraints and including internal obstacles, eventually collapsing into positive liberty.
- In fear of being accused of permitting totalitarianism, Taylor never makes his ‘second step’ explicit, to introduce a ‘doctrine purporting to show that we cannot...follow our real will, outside of a society of a certain canonical form, incorporating true self-government’. In this way, Taylor seems more inclined to incorporate rationalist constraints on Mill’s harm principle (as to what is considered interests) and to call that a considerable departure from negative liberty, as Mill himself already seems to do via grounding the principle in ‘permanent interest(s)’, than to endorse a Marxian or Rousseauian society moved by collective self-governance.
 - But I suspect that such latter forms of collective self-government are the only way to sufficiently carry out positive freedom in society.
- Problems with Taylor’s argument
 - Assumes that negative liberty even makes the descent into positive liberty
 - Taylor’s fundamental premise is that negative liberty selects purposes as significant to us by only counting human interference as liberty-restricting. Therefore, I implicitly discount the importance of my purpose of flying compared to my purpose of freely going grocery shopping
 - But Taylor is wrong in ascribing such an explanation to only counting human interference as liberty-restricting. Rather, as Arendt notes, freedom, in the political sense, makes logical sense only when described in the context of social interdependence, or the existence of a public sphere where my actions can affect others → when we talk about freedom in the context of politics, we really are just talking about social interdependence

- This is why we do not actually preclude all internal obstacles in negative freedom; it depends on the origin of the obstacles i.e. if my fear from speaking in public arises due to public manipulation rather than naturally ingrained
 - Positive freedom would be moved to acknowledge that a person can remain unfree even when he is like Robinson Crusoe, a castaway on an island
- Taylor makes the assumption that there is a convergent, universal end that everyone must share
 - After all, he rejects the objection that “once we admit that the agent himself is not the final authority on his own freedom, that we open the way to totalitarian manipulation...we legitimate others who are supposedly wiser about his purposes than others, redirecting others on the right path” precisely because there is something to be “wrong about” for our desires
 - Positive liberty has broad Kantian contours, for as Berlin notes, “autonomy” is pitted against “heteronomy”. Autonomy is thereby achieved by a “homogeneity” of purposes
 - Taylor does not admit the importance of the plurality of purposes; what Taylor mistakes is that this plurality extends beyond our first-order desires to our desires about desires → certain people value security more so than prosperity and the converse holds
 - When met with such plurality of fundamental desires, we cannot, in a non-circular way, advocate for the relative importance of one over the other
- Negative liberty is perfectly consistent with the qualitative discrimination of our purposes; it merely denies that there is a universal, objective standard for such qualitative discrimination
 - So, on most people’s accounts, Albania is less free than London but there is no rational reason for the convergence of their assessments
 - Taylor’s Charlie Manon example of murderers and cult leaders being mistaken about their purposes is presumably dangerous, for it renders us unable to ascribe blame to them since we have to consider them ‘unfree’

Republican Freedom

Pettit’s Account

Pettit’s motivation for republican freedom

- Republican freedom is the absence of domination, which in turn is defined as the capacity for an arbitrary interference by an external power over the agent

- It is clear that this definition is in some way more demanding than negative liberty – it envisages even the capacity for arbitrary interference as liberty-reducing, not just interference itself. But it is also more permissive than negative liberty, for it allows ‘non-arbitrary interference’ to be not liberty-reducing
- I can suffer domination without interference and interference without domination
- Motivated by the republican tradition (Rome): How can a people be free under a state with laws? Rome was not an empire of men but a mixed constitution in which different powers serve to check and balance each other; and a regime of civic virtue under which people are disposed to serve honestly in public office
 - Anti-monarchism but also not wholly majoritarian → freedom under this system comprised simply of democratic membership or citizenship and had nothing to do with actual inhibitions → laws themselves were inhibitions of what we could or could not do
 - There is a space left unoccupied between negative and positive liberty → liberty as non-domination
- Argument from the connection between law and freedom: The republican view that the laws create people’s freedom makes sense if freedom consists in non-domination
 - The state is a non-dominating interferer → law is creative of freedom
 - Makes sense if we go back to Rousseau’s conception of the State of Nature, whereby men decide to enter the social contract because interdependence creates the ‘Right of the Strong’ and is no longer compatible with civility and peace
 - The republican equates freedom with citizenship, properly conceived – ‘civitas’
- Argument from contextual sensitivity (similar to Taylor): interference need not always involve a wrongful act
 - I interfere with you if I obstruct your making a phone call by deliberately occupying the only kiosk available even though it is perfectly within my right to occupy that kiosk
 - Explicating wrongful interference, or liberty-reducing interference properly conceived, is extremely context dependent

Pettit’s account of what non-domination is

- Pettit thinks that domination = the capacity to interfere + non-arbitrary basis + over a range on actions or choices
 - The most important is what it means to be non-arbitrary
- For Pettit, an act of interference will be non-arbitrary “to the extent that it is forced to track the interests and ideas of the person suffering the interference” and that the will can be exercised at the pleasure or whims of another

- Slave-master analogy
- Thomas Paine's complaint against the monarch: 'it means arbitrary power in an individual person; in the exercise of which, himself, and not the respublica, is the object' → What is required for non-arbitrary state power, is that the power be exercised in a way that tracks, not the power-holder's personal welfare or world-view, but rather the welfare and world-view of the public
- Criticism: Non-arbitrariness by the state requires a notion of the common good i.e. an interest is shared between people; how is the state to discern this?
 - So, the identification of what sort of state action is arbitrary interference is a political matter → is what animates political discourse and therefore mandates the democratic contestation Pettit advocates for
- Criticism: However, we can see that the notion of 'interests and ideas' has some sort of ambiguity – reflecting the conflict between positive and negative liberty – is the sorts of interests that the will must track be 'rational' or actual interests?
 - The dilemma this poses is far-reaching: if they are actual interests, then it seems that republican liberty will be unable to achieve its significant moral finding that good laws do not restrict liberty; if they are rational interests, then they may be faced with Berlin's accusations that we lack universal ends.
 - I think republican theorists like Pettit can respond in the following way: when we track the interests of individuals, we do not actually mean substantive interests in the sense of desires. Instead, what we actually mean is that we allow some minimum form of autonomy for each individual to pursue their life plan. In other words, it tracks their quasi-substantive ends.
 - The republican need not claim that everyone has universal substantive ends, but they do need to claim that everyone does have an interest for there to be a political arrangement to allow a plurality of substantive ends to be achieved.
 - This is reminiscent of an analysis of Rousseau's general will – the general will does not necessarily contain content about actual ends, but instead basic principles in how people can achieve their ends.

Relationship between consent and domination

- Pettit thinks that consent and domination are not the same i.e. consent to interference does not imply that one is not dominated
 - So, consent by itself cannot legitimate political authority insofar as it is uncontrolled or wields arbitrary capacity to interfere

Skinner's conception of republicanism

- Context: Emerges out of the Roman Law and the distinction between a free man and a slave

- Core idea is that what makes you a slave is that you have a dominus and what makes a person as a master is his ability to interfere in another's life
- Freedom is freedom of the individual from power of arbitrary interference to do what one wishes; it is the existence of such a power not the exercise of such power that matters → the benevolent slave master is still liberty-restricting
- Freedom as non-domination manifests in a liberal constitutionalist way: restricts the government so that the government no longer has arbitrary power (Rousseauian sense)
 - So the solution seems to manifest via a social contract, a free entry into a contract such that the interest of the sovereign cannot be contrary to the interest of the individual
 - This is why Skinner focuses his analysis on "free states" as the sufficient condition for "free individuals"
- Non-domination and freedom as "defined by their capacity for self-government"
 - **"A free state is a community in which the actions of the body politic are determined by the will of the members as a whole"**
 - "Just as individual human bodies are free, they argue, if and only if they are able to act or forbear from acting at will, so the bodies of nations and states are likewise free if and only if they are similarly unconstrained from using their powers according to their own wills in pursuit of their desired ends
 - "[If] a state or commonwealth is to count as a free, the laws that govern it – the rules that regulate its bodily movements – must be enacted with the consent of all its citizens, the members of the body politic as a whole"
 - "For to the extent that this does not happen, the body politic will be moved to act by a will other than its own, and will to that degree be deprived of liberty"
 - Freedom is consent-based
 - "[Romans] were 'free indeed' because 'no laws could be imposed upon them without a consent first had in the people's assemblies'"
 - The only way to prevent arbitrariness of interference is that no laws or dominated whatsoever be made, but by the people's consent (Nedham)
- Procedure to achieve non-domination through "equal right of participation in the making of laws"
 - Unlike Rousseau, the will of the people is seen to be extensionally equivalent to "nothing more than the sum of the wills of each individual citizen" or the "will of the majority"
 - Avoids the metaphysics of some "rational will" or some naive expectation of convergent wills

- But seems to be equally vulnerable to the conflict between political disagreement and non-domination as Rousseau's social contract
 - Perhaps there is a prior contractual agreement/consent to agree to whatever will result from the democratic procedure under fair conditions of equal right of participation?
- Non-domination in the political sphere/body politic translates to individual freedom
- How freedom as non-domination is distinct from positive and negative freedom
 - Negative freedom: negative freedom is about the exercise of coercive power rather than the existence of coercive power
 - Positive freedom: positive freedom makes an appeal to the rational self, that freedom consists in rational self-direction rather than being non-dominated i.e. one can be non-dominated by an arbitrary power while still being psychologically constrained by his fear of speaking

Why Republican Freedom is not negative

- Quite obvious cases of domination without interference and interference without domination

Why Republican Freedom is not positive

- Makes no claim about rational interests and allowing people to achieve interests

General arguments for republicanism

Why republican freedom captures liberty: intuitions regarding racial oppression and homelessness

Homelessness

Waldron's argument that our intuitions for why homelessness renders one unfree is captured by negative liberty

- Waldron then launches an argument that homelessness, and by extension poverty, limits our negative liberty.
 - He begins by arguing that an action must be done somewhere and given that the essential human actions of sleeping and urinating are restricted in public spaces and that the homeless lack a private space, the poor and homeless are comprehensively unfree to do essential human actions
 - Not only is this utterly degrading, but the qualitative importance of such actions renders such unfreedoms extremely damaging to one's liberty

Why Waldron's argument fails and why republican freedom does it better

- Waldron's argument seems to pin the degree of unfreedom as contingent on the system of laws that is constructed by the people

- It is the fact that fundamental human actions such as urination and sleeping are disallowed in public places because of such laws that one is rendered comprehensively unfree → they will eventually be dragged away by the police with no private space to seek refuge in
- Homelessness and the issue of freedom, for Waldron, seems to be wholly a matter of spatial sovereignty and command/possession of property
- Waldron's analysis seems insufficient once we consider a society whereby laws have not been enacted yet and it is permissible for the homeless to pee and sleep in the public parks.
 - One would still not consider the homeless free, because they are subject to the whims of the electorate with no protection or private place to insulate them from the laws which prevent their conduct of private actions
 - In short, the condition of existence for the homeless is one of being dominated by everyone else, and that their condition of existence depends arbitrarily on others, rather than their actual actions being prohibited
- This is where our analysis makes contact with Waldron's subtle second line of argument – that the condition of homelessness itself is a loss of dignity
 - The reason why there is a loss of dignity while being in a state of homelessness is because they are often marginalised and excluded from civic function and civic life
 - It is the fact that they cannot partake in democratic contestation over matters that are important and existential for them that creates a loss of dignity → it is a sense of domination and a loss of self-determination

Racial Oppression

LeBron's analysis of lynching and the problem of freedom

- Negative and positive liberty would point out that the prevention of African Americans' abilities to use the same toilets and restaurants as Whites under the Jim Crow laws as reasons for why African Americans face a loss of liberty under these laws.
- But I do not think this quite identifies the cause of their unfreedom. The deeper reason, as LeBron points out, is that "Jim Crow denied the fundamental claim of blacks to their right to be coproducers of democracy, as well as their legitimacy in participating in its renegotiation."
 - It is the fact that they are excluded from the law-making process, and that the law-making process allows for arbitrary interference in their lives because they do not track the interest of African Americans, which creates the conditions of unfreedom. Such conditions of unfreedom give rise to a restriction of choice – but these restrictions of choice are symptoms or manifestations of the loss of liberty, rather than the actual loss of liberty

itself. The loss of liberty lies in the stark conditions of existence that they live in, where Jim Crow laws allow for arbitrary discrimination against them.

- How domination itself affects their self-conception → a loss in negative liberty is not enough to cause this
 - There is a sense of internalised racism that impairs autonomy and self-determination → an internalised belief of self-inferiority that is extremely debilitating → domination creates a person who is chained by his own thoughts → a thorough loss of liberty
 - Cultural movements like BLM is attempting to resist this self-conception of inferiority and to reclaim their autonomy

Narrative of the Life of Frederick Douglass: An American Slave

- How 'liberty' cannot exist with domination
 - The 'system of fraud and inhumanity' was that their 'master had deceived us into a belief [of] freedom' through the benevolence of a holiday, where slaves were allowed by slaveholders to enjoy themselves
 - But the condition of domination meant that such 'liberty' is impermanent and ephemeral → there is a lack of self-possession or ownership of one's liberty and freedom → this means that the freedom they had itself was incomplete
 - It makes no sense to say that the slave was free during the holiday, for freedom is a condition of existence → they return to slavery after the holiday → the slave was always unfree
 - A change of freedom consists in a change on condition, not merely of individuated circumstance
 - The description of the kind master Sophia → ephemerality of benevolence and contingency of existence
 - 'Slavery proved as injurious to her as it did to me. When I went there, she was a pious, warm, and tender-hearted woman. There was no sorrow or suffering for which she had not a tear...Slavery soon proved its ability to divest her of these heavenly qualities...the tender heart became stone, and the lamblike disposition gave way to one of tiger-like fierceness'
 - The terror of this condition is not the fact that it actually happened, but the fact that it could happen and that a life of peace and serenity was contingent on another → Douglass himself was powerless to lead a life he wanted
- The uncertainty of freedom
 - 'On the other hand, away back in the dim distance, under the flickering light of the north star, behind some craggy hill or snow-covered mountain, stood a doubtful freedom – half frozen – beckoning us to come and share its

hospitality' → Douglass' description of freedom is one of tentativity → there is no presumption or guarantee of a standard of material condition or the fact that they will be able to pursue their 'rational interests'

- Rather, freedom is simply a new condition of existence whereby people live interdependently without domination → it may be worse materially, but is simply relinquishing servitude
- Destruction of their self-conception and an embedded self-inferiority
 - Douglass recalls how none of the slaves knew when their birthdays were, or even who their father was → loss of self identity
 - Internalised self hatred: 'it is not uncommon for slaves even to fall out and quarrel among themselves about the relative goodness of their masters, each contending for the superior goodness of his own over that of the others'
 - Perverse internalisation of their inferiority that they seek to justify the relative depravity against others as if it is a good thing that they are in such a state compared to others
 - There is a complete disempowerment and relinquishing of one's selfhood → this is why domination is unfreeing
- Loss of self-possession
 - Douglass' description of the valuation period, where their late master's property was soon to be divided amongst his descendants
 - Disempowering: 'I have no language to express the high excitement and deep anxiety which were felt among us poor slaves during this time. Our fate for life was now to be decided. We had no more voice in that decision than the brutes among whom we were ranked. A single word from the white men was enough – against all our wishes, prayers, and entreaties – to sunder forever the dearest friends, dearest kindred, and strongest ties known to human beings.'
- Independent of material condition
 - 'I have observed this in my experience of slavery, – that whenever my condition was improved, instead of its increasing my contentment, it only increased my desire to be free, and set me to thinking of plans to gain my freedom'

Case from capabilities approach

- The capabilities approach is the thesis that what matters is access to certain functionings or the capability to do certain things
 - The capability to walk, to attend school, to pursue one's rational life plan
- Sen's capabilities approach makes contact with Pettit's thesis of non-domination because it gives a positive reading to non-domination: that the antithesis of non-domination is self-direction

- Being endowed with the capacity to do things underwrites what autonomy and self-determination is
- Liberty-restricting cases such as slavery and homelessness are not because they are not pursuing certain functions, but because there is a loss of capacity to pursue functions → primarily participating in civic life
- Is the capabilities approach truly a friend of the non-domination thesis?
 - A loss of capabilities is not one-one with domination → consider how someone who is handicapped may lose capabilities and access to functionings such as walking → domination instantiates a didactic relation between a dominated person and a master but there is none for naturally caused disabilities → capabilities seem too permissive
 - Furthermore, non-domination is the ability to interfere → does it necessarily mean that there is a loss in access to functioning?
- Myopic objection: a loss of functioning is not immediate from natural disability; it is also affected by the structure of society in which the disability is embedded
 - It is plausible to say that a society that is simply not inclusive towards wheelchair bound persons by creating stairs and not ramps dominates the wheelchair bound
 - It reveals to us how the loss in metaphysical liberty transforms into a loss in political liberty: the loss in political liberty is because of the structure of society that does not involve the interests of the marginalised → it makes sense of why we think marginalised groups (due to natural causes) in society are unfree
- Domination implies the absence of self-determination → that one's ability to lead their life as they see it becomes contingent on another

Case from politics: why republican freedom is non-metaphysical

Step 1: Negative and Positive Liberty are metaphysical

- What is wrong with both Negative and Positive Liberty? My claim is that they are metaphysical and not political notions of freedom.
 - It is therefore useful to make explicit the difference between metaphysical and political freedom. Broadly speaking, political freedom is freedom in a society – it has to do with the way in which we are able to live our lives in society, including the conditions under which we make choices as a result of political institutions. This is made clearer by how Arendt observes that “[w]e first become aware of [liberty]...in our intercourse with others, not in intercourse with ourselves” and how “[liberty] needed a common public space”. Metaphysical freedom, in contrast, is non-contingent on public forums or society – it only has to do with one's available choice sets of what one can do.

- To confuse between metaphysical freedom and political freedom is to overlook the fact that the *only* cases of freedom we are concerned with are when we interact with other people and are situated in society. Observe that metaphysical and political freedom are not coextensive: a singer paralysed by fear and stage fright might be *metaphysically* unfree, but it does not render a loss of liberty in the *political* sense for her inaction is not related to a political setting.
- The converse is also true: political philosophers want to say that living under just rules does not render us politically unfree, but we can admit it makes us metaphysically unfree in preventing me from stealing or killing. It makes our notions of freedom too broad and irrelevant to its political setting, but more deeply, it also neglects the relevance of political institutions and settings to our notions of freedom. My complaint is not that positive and negative liberty are not proper conceptions of freedom – it is simply that they are not political conceptions at all.
- It remains to show that both positive and negative liberty are metaphysical notions of freedom.
 - Let us begin with positive liberty, the thesis that an agent is free if and only if an agent is free from internal and external preventing conditions to do what s/he would rationally want.
 - I think it is quite obvious that this is a metaphysical notion of freedom, for it would condemn the stranded Robinson Crusoe to be unfree if he rationally wanted to swim but could not due to his fear of the sea.
 - While I do not think that Hayek is quite right to say that positive liberty would only call an almost all-powerful agent 'free' because my rational wants could extend to things beyond my ability, Hayek's analysis does reveal determinist undercurrents in the positive libertarian's conception of unfreedom. When we include internal preventing conditions in my 'inner citadel' as resulting in a loss of liberty, we open the floodgates to include every conceivable obstacle against doing what I 'rationally' want, including my cultural heritage and my psychological condition, even when these internal conditions are not germane to a political setting.
 - Let us consider negative liberty, which I think is more subtle in being metaphysical conception of freedom. Negative liberty is the thesis that an agent is free if and only if he is free from human interference to do what he wants.
 - As Arendt reveals to us the importance of recognising that liberty only makes sense in a public forum, it seems that negative liberty's inclusion of 'human interference' is an *ad hoc* revision from 'external obstacles' to fit Arendt's observation.

- Therefore, negative liberty seems to just slice off the ‘political part’ of a metaphysical notion of freedom which defines freedom in terms of the size of an agent’s choice sets. This attempt however remains inadequate because negative liberty still fails to consider fully the political setting of human societies – for instance, a thief who is arrested. It is not so obvious to say that there is a loss of liberty in the political sense because we want to say that people living under just laws, irrespective of their violation, constitute a free society. It is only obvious in the metaphysical sense. Negative freedom still defines freedom in terms of choice sets, and thus remains metaphysical in this way.
- Ultimately, I argue that the fundamental reason why the positive and negative conceptions of liberty are metaphysical is because they are isomorphic with metaphysical freedom (i.e. they share the same structure).
 - This is made clear by MacCallum’s insight that both conceptions share the basic triadic shape: “x is free from y to do z”. But is this not simply the shape of the metaphysical conception of freedom? Since metaphysical freedom is defined on the size of an agent’s choice sets, metaphysical freedom is also the general claim that freedom is an agent being free from some preventing condition to do some action.
 - Obviously, it is insufficient to claim that just because X and Y share the same structure, that Y is a subset of X. What is important to note is that this triadic structure of freedom imposes some extensional restrictions onto negative and positive freedom – it forces them to concede that a loss of liberty must manifest as some restriction of a choice set (due to some preventing conditions) and it prohibits them from being able to consider the political setting of society in their analysis of liberty i.e. how the negative libertarian must confidently endorse that the thief’s liberty is being restricted when he is arrested. Because positive and negative liberty bear the metaphysical shape of freedom, they fail to adequately characterise a political account of freedom.

Step 2: Republican Freedom is political

- Why is republican freedom inherently political in nature? I suggest two reasons for this.
- The first lies within the conception itself. Republican freedom is inherently relational in nature and therefore political. It supposes a loss of liberty obtains when there is an individual being dominated by another individual. Republican freedom only and must come to the fore in political settings, where we have ‘intercourse with others’ and not ‘with ourselves’.

- It highlights that liberty obtains from a relation between individuals, rather than focusing on the choice-sets that individuals have.
- Accordingly, note that republican freedom cannot fit MacCallum's triadic relation because an individual who is dominated (by a benign master) can be free to do whatever he wants. There is a missing variable on what the dominated individual is prevented from doing. This is because republican freedom recognises that liberty is a condition of existence, and not just based on the available set of actions that someone can execute.
- The second is how republican liberty necessarily makes contact with the arrangement of political institutions to secure liberty.
 - As Pettit emphasises, there is a 'law-liberty' connection instantiated from republican freedom – we must immediately think how the state can be organised so that the state “interferes with little or no arbitrariness”.
 - This comes in the form of (Rousseauian) constitutionalist constraints which protect individuals against the arbitrary whims of the majority – for example, equality before the law and that the law must apply generally to all individuals regardless of race or religion or the protection of fundamental rights and the dispersion of executive and legislative powers.
 - Moreover, Skinner highlights how republican freedom recognises that the agent and the State must act in cohesion to create conditions of freedom – the agent must dedicate some part of his energies towards the public function prior to living his life plan so as to maintain the conditions under which he can fully live out his life plan. Because of considerations of arbitrariness, republicanism appreciates the rich political settings we are situated in, more so than negative and positive liberty which merely attempts to utilise the State's apparatus to expand the relevant choice-sets.

Objections + Deepening the Republican thesis

The overinclusive objection

- If freedom consists in not being subject to arbitrary interference over some choices, then how can we ever be free?
- Consider that everytime I walk, I am subject to the capacity for arbitrary interference by another person by blocking my path, or tripping me up → clearly, other people are not tracking my interests
 - The reason why Pettit's conception of non-arbitrary interference seems so shallow is because he motivates the thesis of republican freedom from the idea of law being creative of freedom. In turn, he focuses too much on what he considers “imperium” i.e. the State dominating the people, and not “dominium” i.e. people dominating one another in the private sphere

Response: Gaedeke's reinterpretation of arbitrariness

- Her basic thesis is a condition is only dominance when the power of arbitrary interference has a grounding in the basic structure of society in its legal arrangement or dominant norms
- Kantian backdrop: what is important in domination is the asymmetry in social standing that domination brings about → connects with a theory of free will that is Kantian in nature
 - For Pettit, we are discursive, conversable beings that are able to give and to take reasons for thinking or acting in certain ways → we are liable to have our judgements and actions held to relevant standards and are able to adjust accordingly → this is why we are treated as a free and responsible person
 - Once we are dominated, we lose this ability to be moved by reasons and thus accountable to moral standards
 - Domination undermines what we as participants in discursive practices necessarily presuppose namely that we enjoy discursive control → Someone who is dominated will 'no longer have the sort of voice that can be reliably forthright' and being at the mercy of others, he will not be taken seriously as a credible speaker who warrants hearing
 - Because of this, whether someone actually suffers from interference is not germane to freedom
- The distinctive appeal of Pettit's normative core is that it is reflexive i.e. applies critically to itself
 - The discursive status we ascribe to one another is also taken to articulate the conditions for testing and justifying the validity of norms more generally
 - Being subjected to norms whose validity we cannot challenge means that we lack a fundamental discursive power, namely to shape and interpret our relations to others and thus our own normative status → we are denied what Gaedeke calls our own normative authority → fits in with the paradigmatic case of the slave
 - The normative core of the notion of domination is therefore in terms of the denial of the status of normative authority, instead of as the status of just discursive control
- Rethinking the conception of domination as arbitrary power
 - The conception of domination contains two main elements: an account of power that captures the idea of a negation of a person's status and an account of the conditions under which this kind of [power undermines normative authority
 - Pettit attempts to capture this idea with a dispositional account of power → capacity to interference on an arbitrary basis in certain choices that the other is in a position to make

- Resonates well at first sight + domination is not necessarily intended
→ it may be unwilling such as in relationships of inalienable asymmetrical power
- But Gaedeke claims that this fails to capture the status-based nature of domination → how to account for the social reality of domination beyond interference without drawing on discrete actions
 - Pettit's account implies that anything that the dominator could do to others constitutes domination but this counterfactual reading of dispositional power is too wide → mere presence of a kidnapper means we are all dominated
 - What is problematic is that Pettit's account of dominating power focus on particular actions i.e. whether they are possible actions of the dominator
 - But if the notion of domination refers to the negation of a status that would, were it realised, fundamentally restructure the power relation as a relation between equals, such an interventionist model of power is misleading because it falsely suggests that the social reality of domination can be analysed as an interactional phenomenon
- Gaedeke's modification: interpersonal domination is best understood as a structurally constituted form of power and we should distinguish between two kinds of dominating power – interpersonal and systemic domination
 - Both are structurally constituted but interpersonal domination is a direct relation while systemic domination involves a more mediated, impersonal form of domination
 - Structurally constituted: like slavery because it is a form of power that is constituted through a legal institution → based on legal norms that systematically empower the slaveholder while systematically disempowering the enslaved person
 - More specific and thereby less inclusive than Pettit → my capacity to interfere with you in the canteen is systematically empowered by legal norms
 - So, an employer may not be dominating if the legal norms do not empower him and disempower the employee
 - Eliminates happenstance
 - Draws attention to systematic and socially produced disempowerment of the dominated
 - African Americans in the United States do not have a particular master but they are subjected to norms, both social and legal that posit them as inferior/dangerous/people of lesser moral worth
- Arbitrariness and structurally constituted domination
 - Not all asymmetrical power structures are considered domination

- Formal accounts of non-arbitrariness maintain that mere formal constraints on power suffice to secure non-arbitrariness
 - But still permits racist rules that may have been constrained
- Most compelling is the material account of non-arbitrariness that specifies what kind of constraints may secure non-arbitrariness with regards to their content
- Problem with Pettit's arbitrariness account
 - Not sufficiently intersubjective because it fails to provide procedural criteria that could serve as a basis for demanding collective action against domination → threatens to collapse into a subjectivist account
 - Risk falling prey to problems of objectivist accounts because he conceives of the avowability of interests in terms of their rational consistency with a set of given common or private goals and standards
 - Paternalist implications + does not take into account the very power to challenge given standards and expectations that is crucial for non arbitrariness
- Gaedeke's + Forst's view: the issue of arbitrariness hinges on procedures for challenging and exchanging reasons → it is reasons and not interests that serve as the basis of arbitrariness
 - Two procedural criteria: generality and reciprocity → claims and actions need to be justifiable in general and reciprocal terms (apply to all and not particular persons and accord the same claims and obligations to everyone)
- Institutional implications: Institutions must be established to protect the equal status of persons
 - Concerns with the insufficiencies of the mixed constitution and the contestatory citizenry
 - Mere balance of power is unable to address structural sources of domination + horizontal balance of power remains arbitrary in an important sense because it compromises a crucial mechanism for securing formal generality → the strict separation between the application of the law in particular cases and the formulation of general norms
 - If all branches control each other, the distinction between these different kinds of reasoning cannot be upheld
 - Securing formal non-arbitrariness requires a vertical, functional separation of powers whereby the legislature is supreme in generating law but it cannot apply the law (Rousseau)
 - Not about mixing power but about having separate tasks
 - I also think it needs a thicker constitution

- Contestatory mechanisms must be reconceived in a participatory way and cannot be delegated to a subset of the people (inalienable and indivisible – Rousseau)
 - Needs to include the power to initiate new deliberations

The collapse objection

- Carter and Kramer argue that we cannot suffer from domination without suffering from actual interference: instance of domination do actually manifest forms of interference and can be successfully analysed within the framework of negative liberty alone
- Relevant forms of interference follow from the deferential and obsequious life that a slave must live under a master's power and that certain choices from its option set has been removed
 - Unfreedom a slave really suffers from is the removal of options from her option sense

Republican reply through the Gentle Giant

- Assume the existence of a Giant that can coerce an entire village; the negative conception of liberty says that the decrease in chance of interference due to character traits of the Gentle Giant creates an exactly proportional increase in liberty for the villages
- Pettit and Skinner deny this equation because of the distinction between (a) the impossibility of interference by the Gentle Giant due to some psychological condition and (b) the mere unlikelihood of interference by the Gentle Giant by reason of her disposition and inclinations or a 'non-disabling, endogenous feature'
 - Only in (a) does the Gentle Giant not have any relevant power at all but in (b) liberty is not enlarged because they still live under the mercy of the Giant's subjective dispositions

The dispositional/contingency objection (Gentle Giant Problem)

- Pettit's account implies that anything that the dominator could do to others constitutes domination but this counterfactual reading of dispositional power is too wide
- How to square the proposition that domination is not decreased by the subjective disposition of the 'master' to not interfere with the claim elsewhere in republican theory that deterrence does decrease domination
 - Especially when the operative feature of deterrence is the creation of subjective dispositions in people not to interfere

- Analogy to a deterred criminal through increasing costs for any agent if they interfere → but whether they are deterred depends on their dispositions and inclinations towards costs → depends on an agent's endogenous valuation function
- There is an arbitrary distinction: if they see the costs quo punishments introduced by the criminal justice system as liberty increasing but the costs quo subjective dispositions as completely liberty insensitive
 - No principled distinction
- Potential reply: internal/external mechanism
 - There is an external component of the Gentle Giant's choice and that of the deterred criminal
 - But counterintuitive result: if a criminal who is deterred becomes a pacifist (dispositional), how are the people around him now more unfree
 - Pettit and Skinner can no longer capture why people can claim to live in a more 'free' state when it is governed by the rule of law than not because they fail to explain why effective, deterrent based laws even contribute to constituting a free society

Response: Kirby's rule based republican freedom

- The key mark of republican freedom is that it is the mere existential fact that such individuals have the power to so decide whether to interfere or not
- Kirby advocates a replacement: replacing their fundamental antonym of republican liberty – the power to arbitrarily interfere – with a higher order alternative – the power to arbitrarily determine the rules with respect to interference
 - Deterred criminal remains bound by the rules of society
 - Giant stands outside whatever rules the villagers live by and the villages live peacefully only because the Giant allows them to
- On this conception, republican unfreedom is defined not by our dependence upon the choices of others as to whether they will interfere or not, but by our dependence upon the choices of others as to the rules that we must live by

A Theory of self-possession

- See capabilities approach

On the achievement of liberty: importance of institutions

Pettit's democratic constitutionalism

- Primary question: How can the state be organised so that state interference involves little or no arbitrariness?
- Necessary condition 1: A non-manipulable constitution

- The instruments used by a republican state should be maximally resistant to being deployed on an arbitrary or sectional basis → no one individual or group should have discretion in how the instruments are used
- System should constitute an 'empire of laws and not of men' and should disperse legal powers among the different parties and should also make law relatively resistant to majority will
 - Constitution that cannot be amended other than by a supermajority?
 - Dispersion of power in terms of the executive, judicial and legislative → modern day America
- Empire of law condition: laws should be constrained by the standard rule-of-law theorists such as they should be general and apply to everyone and made known in advance to those to whom they apply → government action must be law-like and not ad hoc or ex post → particularistic decisions must be resisted because then it opens up the floodgates to arbitrary action based on the will of decision makers
 - Need not commit us to extreme proceduralism and will allow for a degree of discretion within the procedural boundaries it establishes
- Dispersion of power condition: see this in Montesquieu where there are those who make the laws, those who execute the law and those who adjudicate controversial cases
 - If legislators are to be allowed to legislate only in a way that is consistent with certain existing laws or principles, therefore, it is important that those who judge on whether the legislation does conform to those constraints are not the legislators themselves
 - Dispersion of power through functions is just an aspect of the larger project in the republican programme → the project is encapsulated in the ancient ideal of a mixed government in which different sectors are represented and power is given in part to this representative body and in part to that → no one can be both judge and jury
- Counter-majoritarian decision: cannot be subject to easy majoritarian change
 - Every law must be capable of being amended; but they must continue to promote non-domination
 - Even if we think that laws are democratic creations, we should require democracy to work on different tracks and insist that amendments to the more basic and important laws should have to pass along a particularly difficult route
 - The republican case is that majorities are easily formed and they exercise arbitrary power if their will is unconstrained
 - But is this still tracking interests?
- Contestable Democracy: A proper democracy as essential to non-domination

- Is a constitution itself sufficient? Pettit answers no → laws still need to be formed in some way → the constitution merely restricts the way in which laws are formed
- Connection between contestability and non-domination: authorities exercise arbitrary power if the decisions they make can be based on their private or sectional interests
 - We need public decision making to be constrained by actual public interests by citizens
- For Pettit, democracy is not only consensual but also contestatory → it is not that the public actually agrees to some elected result, but that democracy creates avenues that allow citizens to contest prevailing decisions
 - A government will represent a form of rule that is controlled by the people, to the extent that the people individually and collectively enjoy a permanent possibility of contesting what government decides → this pierces through the slave-master analogy between the state and the people → the slave can never contest what the master demands
- What is a contestable democracy: deliberation rather than mere bargaining
 - Trouble with bargaining contestations is that they are only available to those who have sufficient negotiating power to be able to threaten other parties effectively
 - Debate allows for a more equal (properly conceived) form of transformation of preferences and agreement → public decision making cannot be sectional if it is to be non-dominating
 - Theories of deliberation allow the eventual conclusion of the debate to be non-sectional in this sense → ideas of citizen sacrifice and moral reciprocity; public oriented reasons
 - Creates what Sunstein calls a republic of reasons → a polity within which citizens have equal claims and powers and public matters are decided by deliberation on the basis of considerations that have common appeal and are not particularistic in motivation
 - Skinner: Republican ideas were nurtured by a belief in dialogical reason → the appropriate model will always be that of a dialogue, the appropriate stance a willingness to negotiate over rival intuitions concerning the applicability of evaluative terms. We strive to reach understanding and resolve disputes in a conversational way
- Pettit's view in On the people's terms
 - How to achieve democratic influence for the people

- Elections are necessary but insufficient → gives rise to the problem of majority tyranny because elections only give each citizen a vote with the same value but it cannot ensure that they each have equal access to influence since equal access would require an equal chance of being on the winning side on any chosen issue but there are sticky minorities
- Remedy: allow individuals or subgroups to contest various decisions on the grounds that the majoritarian procedure does not give them an equal chance of influence in the relevant area → requires transparency in public decision-making and impartiality in the resolution of contestations
- Must also embrace the traditional mixed constitution to be resistant towards a controlling elite
- Under a mixed constitution, the voice of the people emerges from coordination amongst distinct, interacting individuals and bodies, rather than being identified with the voice of a single spokesperson
- People's influence must also not be conditional on any other party's goodwill insofar as they are disposed to contest what government proposes or decides on various fronts
- Final requirement: an electoral system of influence has to be suitably efficacious → whatever direction it serves to impose on government it does so with such an effect that individuals who do not like what government does, either in general or in its dealing with them, can see this as tough luck, not the result of their subjection to an alien will
- How to achieve democratic control for the people
 - Republican democracy must impose a popular direction on government but democracy requires more than merely popular influence
 - Two problematic models: (1) intentional model which suggests that people can form and then impose their view of the public interest, which is best interpreted as the interest that they each have in how things should be done → requires lots of virtue (but what about a robust sense of citizenship); (2) the non-intentional model is that if people just vote for their private preferences, and if representatives have to answer for how they serve those interests in frequent elections, then by the invisible hand, those in power will maximise overall satisfaction
 - Third model: must make claims that seek to move the group by appeal to considerations that all find acceptable and are ready to recognise as relevant in public decision making

- Acceptability game has a presence in electoral/contestatory regimes → creation of special norms that licence the importance of equal influence and equal status, and help fix the range of duties that the state is expected to promote
- Basically just deliberative democracy → government is forced to promote public interests → emergence of a state that has a single voice, operates to a coherent set of ends, and can reliably incur and discharge commitments to its citizens